

25STCV04477 25STCV04477

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NTATIVE RULING

DEPARTMENT

415

HEARING DATE

June 23, 2026

CASE NUMBER

25STCV04477

MOTIONS

Motions to Quash Subpoenas

MOVING PARTY

Plaintiff Eswin Ponce

OPPOSING PARTY

Defendant Western States Regional Council of Carpenters

MOTION

Plaintiff

Eswin Ponce ("Plaintiff") sued Defendant Western States Regional Council of Carpenters ("Defendant"), alleging employment claims. Plaintiff now moves to quash subpoenas defendant served on Deponents Prime Healthcare Centinela, LLC and Planned Parenthood Los Angeles ("Deponents"). In the subpoenas, Defendant seeks Plaintiff's medical records from 2008 to the present.

ANALYSIS

If a subpoena requires the production of documents, the Court may quash the subpoena entirely or modify it. (Code Civ. Proc., § 1987.1, subd. (a).) In ruling on a motion to quash, "the Court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

While plaintiffs are not obligated to sacrifice all privacy to seek redress for a specific physical, mental, or emotional injury, "they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this

lawsuit.” (Britt v. Superior Court

(1978) 20 Cal.3d 844, 864 (Britt); City & County of San Francisco

v. Superior Court (1951) 37 Cal.2d 227, 232.) A plaintiff suing for personal injuries waives

the physician-patient privilege to some extent, but this does not make

discoverable all of a plaintiff’s lifetime medical history. (Britt, supra, 20 Cal.3d at pp. 863-64.)

In the instant case, Plaintiff contends

Defendant discriminated and retaliated against him because of his disability. Plaintiff specifically asserts he has “anxiety,

panic attacks, kidney stones, stomach issues, and other disabilities.” (See, e.g., Plaintiff’s Motion to Quash Subpoena

for Production of Documents from Prime Healthcare Centinela, LLC, p. 1.)

Plaintiff relies on Tylo v. Superior Court

(1997) 55 Cal.App.4th 1379. In that

case, the Court held questions into private matters is permissible “as long as

they relate to the specific subject matter tendered in the litigation.” (Id. at p. 1391.) In this matter, records which pertain to

Plaintiff’s anxiety, panic attacks, kidney stones, and stomach issues to the

specific claims Plaintiff asserts against Defendant. As such, these records are discoverable. However, as Plaintiff contends, a lifetime of

medical records should not have to be produced; thus, any production should be

appropriately limited as to time.

Accordingly, the motions are denied. However, the Court limits the subpoenas to

records which pertain to Plaintiff’s anxiety, panic attacks, kidney stones, and

stomach issues, which are pertinent to Plaintiff's claims. The Court likewise limits the subpoenas to records from November 1, 2020 to the present, which covers the time period starting from two years before Plaintiff began working for Defendant.

CONCLUSION AND ORDER

Deponents are ordered to produce the relevant responsive documents in keeping with the Court's ruling within 30 days of the issuance of this order.

Defendant is to give notice of the Court's ruling and to file proof of service of same.